

HOUSE No. 1753

The Commonwealth of Massachusetts

PRESENTED BY:

Russell E. Holmes and Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a commission to study reparations in Massachusetts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>1/15/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>1/28/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>2/21/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>3/18/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>11/25/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/2/2026</i>

HOUSE No. 1753

By Representative Holmes of Boston and Senator Miranda, a joint petition (accompanied by bill, House, No. 1753) of Russell E. Holmes, Jason M. Lewis and Mindy Domb for legislation to establish a special commission to study reparations in Massachusetts. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a commission to study reparations in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 3 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 76. (a) There shall be a permanent commission on reparations. The commission
4 shall consist of: not less than 9 nor more than 15 members appointed by the governor, from a list
5 provided by the senate president , 1 of whom shall be a person from an academic field that has
6 expertise in reparatory justice and sovereignty, 1 of whom shall be an expert from the field of
7 social science with expertise in economics, policy, law and the impact that society has had on
8 individuals' health outcomes, life expectancy, safety, enfranchisement, well-being, freedom of
9 movement and ability to thrive, 2 of whom shall be representatives of major civil society and
10 reparations organizations that have historically championed the cause of reparatory justice and 5
11 of whom shall be persons with respected track records in grassroots organizing; 2 members
12 appointed by the senate president; 2 members appointed by the speaker of the house of

representatives; 1 member appointed by the attorney general, who shall work within the civil rights division of the office of the attorney general; and 2 members appointed by the house and senate chairs of the joint committee on racial equity, civil rights and inclusion; 4 members chosen from economists with expertise in quantitative analysis to estimate cost, estimate economic implications and research and develop methods to disperse reparations, historians and licensed clinical social workers with expertise on the psychological and emotional harm or impact of race-based injustice and collective and individual trauma.

Not more than 4 members of the commission shall be members of the legislature. Members shall be drawn from diverse backgrounds to represent the interests of residents of African descent and shall have experience working to implement restorative justice reform and, to the extent possible, represent geographically diverse areas of the commonwealth.

The commission shall elect from among its members a chair, vice chair and other officers it considers necessary.

(b) Vacancies in the membership of the commission shall not affect the powers of the commission and shall be filled by the original appointing authority for the balance of the unexpired term.

(c) Eight members of the commission shall constitute a quorum.

(d) The commission may establish a reasonable per diem compensation, subject to appropriation, for its members for attendance at not more than 10 meetings; provided, however, that non-legislative members shall also be entitled to compensation, subject to appropriation, for research and labor. The members of the commission shall be reimbursed for any usual and customary expenses incurred in the performance of their duties.

(e) The commission shall be a resource to the commonwealth on the subject of reparations. It shall be a primary function of the commission to study and recommend reparative actions for slavery, its consequences and continued vestiges on residents of African descent, including, but not limited to: (i) the institution of slavery, including both the transatlantic and domestic trade that existed from 1565 in colonial Florida and from 1619 to 1865, inclusive, within the other colonies that became the United States; (ii) the de jure and de facto discrimination against residents of African descent and their descendants from the end of the Civil War to the present, including economic, political, educational and social discrimination; (iii) the lingering negative effects of the institution of slavery and discrimination against people of African descent; (iv) the manner in which instructional resources and technologies are being used to deny the inhumanity of slavery and the crime against humanity committed against people of African descent; (v) any individuals or individual businesses, corporations or any other commercial or ecumenical entity in the commonwealth which facilitated or participated in the chattel slavery process by financing, owning, propagating, investing in or in any other manner facilitating or benefiting from slavery; and (vi) the direct benefits to societal institutions, public and private, including higher education, corporate, religious and associational, whether for profit or non-profit organizations, that have benefitted in sustaining exploitative relationships with residents of African descent. In performing this function, the commission shall be explicit and intentional in resourcing oral histories and community-based knowledge to inform the scope and direction of the commission work.

(f) Furthermore, the commission shall (i) recommend and implement appropriate ways to educate the public of the commission's findings; (ii) recommend appropriate remedies in consideration of the commission's findings and a dedicated deliberation process to distinguish

between and identify individual and group benefits and any policy remedies proposed; (iii) recommend reparation proposals for residents of African descent, with special consideration for African Americans who are descendants of persons enslaved in the United States; and (iv) seek the assistance of agencies of the commonwealth to develop and evaluate processes and applications for reparations, requiring the Governor to include in the annual budget bill such sums as necessary to carry out the Act .

In making recommendations under this subsection, the commission shall address, among other issues: (A) how the recommendations comport with international standards of remedy for wrongs and injuries caused by the state, including full reparations and special measures, as understood by various relevant international protocols, laws and findings; (B) how the commonwealth will offer a formal apology on behalf of the people of the commonwealth for the perpetration of gross human rights violations and crimes against humanity on African Americans, freedmen and freedwomen and their descendants; (C) how laws and policies of the commonwealth that continue to disproportionately and negatively affect African Americans, freedmen and freedwomen and their descendants as a group and perpetuate the lingering material and psychosocial effects of slavery can be eliminated; (D) how the injuries resulting from matters described in this section can be reversed and how to provide appropriate policies, programs, projects and recommendations for the purpose of reversing those injuries; (E) how, in consideration of the commission's findings, any form of compensation to African Americans, with a special consideration for African Americans who are descendants of persons enslaved in the United States, can be calculated; (F) what form of compensation should be awarded, through what instrumentalities and who should be eligible for such compensation; and (G) how, in consideration of the commission's findings, any other forms of rehabilitation or restitution to

African Americans, freedmen and freewomen and their descendants are warranted and what form and scope those measures should take. The commission shall submit a written report of its findings and recommendations to the clerks of the senate and the house of representatives not later than 2 years after the date of the first meeting of the commission.

(g) The commission shall identify, compile and synthesize the relevant evidentiary documentation on the institution of slavery, which shall include, but not be limited to, the facts related to the: (i) capture and procurement of human beings in Africa; (ii) transportation of human beings to the United States and the colonies that became the United States for the purpose of enslavement, free labor, skills extraction and intellectual, sexual and cultural exploitation, including their treatment during transportation; (iii) sale and acquisition of residents of African descent as chattel property in interstate and intrastate commerce; (iv) treatment of residents of African descent enslaved in the colonies and the United States, including the deprivation of their freedom, exploitation of their labor and destruction of their culture, language, religion and families; (v) extensive denial of humanity, sexual abuse and chattelization of persons; (vi) federal and state laws that produced loss of sovereignty and discriminated against formerly enslaved residents of African descent and their descendants who were deemed United States citizens from 1868 to the present; (vii) other forms of discrimination in the public and private sectors against residents of African descent and their descendants who were deemed United States citizens from 1868 to the present, including, but not limited to, redlining, educational funding discrepancies and predatory financial practices; and (viii) lingering negative effects of the institution of slavery and the matters described in this section on living African Americans who are descendants of persons enslaved in the United and society as a whole in the United States.

(h) The commission shall have the power to:

(i) hold hearings at any time and location in the commonwealth and request the attendance and testimony of witnesses at said hearings; (ii) request the production of books, records, correspondence, memoranda, papers and documents; (iv) research methods and materials for facilitating education, community dialogue, symbolic acknowledgment and other formal actions leading toward repair and a sense of justice among the people of the commonwealth; (v) recommend appropriate ways to educate the public about the findings and recommendations in the commission's report; (vi) consider such other matters relating to the institution and legacies of slavery in the commonwealth as the members of the commission deem appropriate; (vii) provide lineage-based research and tools to residents of the commonwealth who are descendants of chattel slavery within the United States; and (viii) seek an order from a superior court compelling testimony or compliance with a subpoena.

(i) The commission may delegate to any subcommittee or member of the commission any action, which the commission is authorized to do or make.

(j) The commission may request from all state agencies such information and assistance as the commission may require. Each state agency shall cooperate with requests from the commission and shall provide such information and assistance requested, as permitted by law. The commission shall keep confidential any information received from a state agency that is confidential or not considered a public record under clause Twenty-sixth of section 7 of chapter 4 of the General Laws and chapter 66 of the General Laws.

(k) In furtherance of the responsibilities established under this section, the commission may: (i) appoint and fix the compensation of such personnel as the commission considers

126 appropriate; (ii) procure supplies, services and property by contract in accordance with
127 applicable laws and rules; and (iii) enter into contracts for the purposes of conducting research or
128 surveys, preparing reports and performing other activities necessary for the discharge of the
129 duties of the commission with federal or state departments, agencies and other instrumentalities
130 and private entities.

131 (l) Any reparation actions undertaken pursuant to this section shall be in addition to any
132 reparation actions taken at the federal or local level.

133 SECTION 2. The first meeting of the commission shall occur not later than 90 days after
134 the effective date of this act.